

Judgment Sheet.

IN THE LAHORE HIGH COURT, LAHORE.

JUDICIAL DEPARTMENT.

Writ Petition No. 17407 of 2026.

(Mohsin Iqbal Cheema. Versus. Govt. of Punjab & 03 others)

J U D G M E N T.

Dates of Hearing:	18.03.2026, 15.04.2026 & 12.05.2026.
Petitioner by:	M/s Ch. Zaheer Afzal Chadhar, Ch. Imran Raza Chadhar and Ch. Qasim Raza Chadhar, Advocates.
Respondent Nos. 1 & 4 by:	Mr. Imran Khan, Assistant Advocate General Punjab.
Respondent Nos: 2 & 3 by:	M/s Muzaffar Islam and Kamran Ashraf Ch., Advocates.

KHALID ISHAQ, J:- This Constitutional Petition, filed under Article 199 of the Constitution of Islamic Republic of Pakistan (the “**Constitution**”), is directed against the Appellate Order dated 03.06.2025 (“**Impugned Order**”) passed by Respondent No.1/Senior Member Board of Revenue Punjab, Lahore (“**SMBR**”).

2. Brief facts, which are necessary to decide the questions of law raised through the Constitutional Petition in hand are that on the basis of recommendation of the Punjab Public Service Commission (**PPSC**), the Petitioner, amongst others, was appointed as Assistant Director Land Records (**ADLR**) on contractual basis, in the Directorate of Land Records, Board of Revenue Punjab, Lahore *vide* letter of appointment dated 07.03.2013, issued under the hands of SMBR. The contractual service of the Petitioner was extended from time to time. During one of such extended contractual periods, the Punjab Land Records Authority Act, 2017 (the “**PLRA Act**”) was promulgated by the Provincial Legislature. Under Section 3 of the PLRA Act, the *Punjab Land Records Authority* (“**PLRA**”) was constituted and by virtue of Section 31(1)(f) of the PLRA Act, the Petitioner, as well as, the other similarly

placed contractual employees, were transferred to PLRA and since then, the contractual services of the Petitioner and others were governed under the provisions contained in the PLRA Act, as well as, Punjab Land Records Authority (Appointment and Conditions of Service) Regulations 2020 (“**PLRA Regulations**”), framed under Section 30 of the PLRA Act. It is also an admitted position that under the PLRA Regulations, the service contract of the Petitioner and others were converted into perpetual contracts to survive till the age of superannuation.

3. On 05.07.2024, the Director General PLRA/Respondent No.2 issued an order of inquiry against the Petitioner and others on the basis of a complaint lodged by the Intelligence and Vigilance Wing of the PLRA, whereby, it was alleged that the Petitioner is involved in causing loss to the public exchequer by evasion of duties, taxes/fees payable under Section 236C and 236K of the Income Tax Ordinance, 2001. Thus, the Respondent No.3/Director Operations PLRA was appointed as Inquiry Officer (“**Inquiry Officer**”) under Section 9 of the Punjab Employees Efficiency, Discipline and Accountability Act, 2006 (“**PEEDA**”) to probe into the matter and submit his report. The Petitioner was afforded an opportunity to file reply under the provision contained in Section 9(1), read with Section 10 of the PEEDA. Regular inquiry was conducted, evidence was recorded and at the culmination of the inquiry proceeding, the Inquiry Officer, vide inquiry report dated 26.09.2024 (“**Inquiry Report**”) concluded that the Petitioner is guilty of misconduct, however, the Inquiry Officer recommended minor penalty of “withholding of increments for a period of five years” under Section 4(1)(a)(ii) of the PEEDA.

4. On receipt of the Inquiry Report and recommendation of the Inquiry Officer, the Competent Authority of the Petitioner *i.e.* the Director General PLRA served a show cause notice dated 24.10.2024 (**Show Cause Notice**) in terms of Section 13(4) of the PEEDA, while affording opportunity of personal hearing to the Petitioner in terms of Section 14 of PEEDA. After hearing the Petitioner and perusing the

available record in form of the Inquiry Report prepared by the Inquiry Officer, the Competent Authority (Director General, PLRA), while exercising the jurisdiction and authority conferred upon him under Section 13(5) of the PEEDA, disagreed with the recommendation of the Inquiry Officer for imposition of minor penalty and proceeded to impose major penalty of dismissal from service under Section 4(1)(b)(vi) of the PEEDA, *vide* order dated 11.11.2024 (“**Dismissal Order**”).

5. Being aggrieved by the Dismissal Order, the Petitioner filed an appeal under Section 16 of the PEEDA before the Appellate Authority *i.e.* SMBR, which appeal was dismissed *vide* the Impugned Order. It is of note that the Petitioner did not lay a challenge to the Impugned Order by availing any remedy, including that of a Constitutional Petition under Article 199 of the Constitution etc. and instead, adopted a circuitous and strange route by filing a second purported departmental appeal under Section 16 of the PEEDA before the Chief Secretary, Government of Punjab on 27.01.2026, again challenging the Dismissal Order after a period of more than one year, from the date of passing of the Dismissal Order and after seven months of the passing of the Impugned Order. The second purported appeal of the Petitioner was declined by the Additional Secretary (Service Matters) to the Chief Secretary on 30.01.2026, while communicating to the Petitioner that the Appellate Authority **SMBR**) has already decided the appeal against the Dismissal Order. At this juncture the Petitioner has opted to file the Constitutional Petition in hand after the delay of 9 (nine) months from the date of the Impugned Order.

6. Learned counsel for the Petitioner contends that since the Petitioner was appointed by the SMBR *vide* appointment letter dated 07.03.2013, therefore, in terms of the provisions contained in Section 2(f)(ii) of PEDA, the Competent Authority for initiating the inquiry proceedings or for conducting inquiry against the Petitioner, cannot be an officer inferior in rank to the Appointing Authority, therefore, per learned counsel for the Petitioner, the initiation of inquiry proceedings

in terms of Section 5 of the PEEDA by the Director General PLRA *vide* order of inquiry dated 05.07.2024 and subsequent proceedings, be it inquiry proceeding, issuance of show cause notice dated 24.10.2024 by the Director General, PLRA, Dismissal Order, as well as, the Impugned Order, all are without jurisdiction for having been issued by the Authority(s), not competent to proceed against the Petitioner. It is further contended that the departmental appeal filed before the Chief Secretary, Government of Punjab has unlawfully been returned as the said authority was the competent departmental authority for deciding the departmental appeal under Section 16 of the PEEDA. Learned counsel has placed reliance upon the case of “Muhammad Arshad v. Deputy District Officer Food, Multan” (2025 SCMR 2071) to contend that without prejudice to the above submissions *qua* jurisdictional defect in terms of Section 2(f)(ii) of PEEDA, the Show Cause Notice dated 24.10.2024 and consequently the Dismissal Order are bad in law as the same have been issued/passed in violation of the law laid down by the Supreme Court of Pakistan in the case of Muhammad Arshad supra, as well as, by this Court in the case of “Haji Aftab Ahmed v. Government of Punjab” (W.P No. 33467/2025), decided *vide* order dated 26.11.2025, “Awais Sarwar v. Government of Punjab” (W.P. No. 4798/2025), decided *vide* order dated 20.02.2025 and the case of “Mst. Tasleem Kausar v. Government of Punjab” (2025 LHC 5211).

7. Respondent/PLRA has filed parawise comments and reply. Learned Counsel for PLRA has defended the Dismissal Order and the Impugned Order; raised objections *viz* the maintainability of the Constitutional Petition in hand on the ground of laches, as well as, on the ground of maintainability; contends that the Petitioner’s services being contractual in nature, the relationship between Petitioner and PLRA is governed under the principle of *master and servant*, therefore, invocation of jurisdiction under Article 199 of the Constitution is untenable. Hence, presses for dismissal of the instant petition.

8. Arguments heard. Record perused.

9. Since the question of maintainability of the Constitutional Petition in hand has been raised by learned counsel for PLRA, therefore, the question of maintainability being foundational importance has to be dealt with ahead of all other questions. There is no cavil to the settled legal position that *per se* a contractual employee cannot invoke the Constitutional jurisdiction of this Court if the rules governing the contractual service are non-statutory and the relationship between the parties is governed under the principle of *master and servant*, however, the said objection does not impede the maintainability of the Constitutional Petition in hand as it is well settled on the strength of catena of judgements that the Constitutional jurisdiction under Article 199 of the Constitution may be invoked where the act of a statutory authority is violative of relevant service rules or regulations, even if such regulations are non-statutory or the petitioner has agitated his grievance on the touchstone of violation of statutory provision of an enactment, under which enactment/statute, the Petitioner has been proceeded against *i.e.* PEEDA, therefore, while relying upon the enunciation of law in the cases reported as “Capt. Muhammad Ali Khan v. Port Qasim Authority” (Civil Appeal No. 112-K/2024 - decided on 30.03.2026) by the Federal Constitutional Court of Pakistan, affirming the earlier settled position of law by the Supreme Court of Pakistan in the cases of : “Bashir Ahmad v. Director General Lahore Development Authority” (2020 SCMR 471); “Haroon Ur Rasheed v. Lahore Development Authority” (2016 SCMR 931); “Muhammad Rafi and another v. Federation of Pakistan and others” (2016 SCMR 2146) and “Pakistan Defence Forces Housing Authority v. Lt. Col. Syed Jawaid Ahmed” (2013 SCMR 1707), the objection raised by learned counsel for the PLRA regarding maintainability of the Constitutional Petition in hand are not sustainable.

10. Adverting to the grounds raised by the Petitioner on the touchstone of Section 2(f)(ii) of PEDDA, read with Section 31(1)(f) of the PLRA Act, the said ground is misplaced as this question has authoritatively been settled by the Supreme Court of Pakistan in the

case of *“Government of Punjab v. Mst. Ashi”*¹, whereby, the question sought to be raised by the Petitioner has been settled in the case of the Petitioner’s colleagues, who were seeking regularization under the *Punjab Regularization of Service Act, 2018* (the “**Regularization Act**”), on the ground that the ADLRs appointed by the SMBR in the Directorate of Land Records, Board of Revenue Punjab, Lahore are continuously rendering their contractual services as contractual employees of the Government of Punjab under the auspices and control of the Board of Revenue; it was claimed that the said contractual employees were transferred to PLRA under Section 11(2) and not under Section 31(1)(f) of the PLRA Act, therefore, they were amenable for regularization under the Regularization Act. It was in this background that the ADLRs appointed by the SMBR before the promulgation of the PLRA Act in the Directorate of Land Records, Board of Revenue Punjab, Lahore sought regularization under the Regularization Act, while claiming to be under the administrative control of the Board of Revenue Punjab. The said ground, though sailed through before the learned Single Judge in Chambers of this Court in the case reported as *“Ashi v. Province of Punjab and others”* (2022 PLC (CS) 564), however, on a challenge laid before the Supreme Court of Pakistan in CPLA No. 1559-I/2021, titled *Province of Punjab v. Ashi etc.* this legal question has been finally set at naught by the Supreme Court of Pakistan while conclusively settling that the ADLRs were transferred to PLRA by operation of law under Section 31(1)(f) and not under Section 11(2) of the PLRA Act, thus, it was concluded that ADLRs are no longer under the control and management of the Board of Revenue, Government of the Punjab, therefore, not entitled for regularization under the Regularization Act. The operative part of the Supreme Court Judgment is reproduced below:

“7. From the above, the respondents were transferred under section 31(f) of the Act as contractual employees to the Authority and, therefore, cannot invoke the provisions of the Regularization Act for their regularization.”

¹ *“Province of Punjab v. Ashi etc.”* (CPLA No. 1559-I/2021 – Decided on 21.03.2025)

It is pertinent to mention here that a Review Petition filed against the judgment dated 21.03.2025 *supra* has also been dismissed by the Supreme Court of Pakistan *vide* order dated 01.10.2025.

11. In view of the foregoing, it is held that the grounds raised by the Petitioner on the touchstone of Section 2(f)(ii) of PEEDA, read with Section 31(1)(f) of the PLRA Act for impugning the disciplinary proceedings and the Impugned Order, are without any substance and inconsequential for laying a challenge to the proceedings initiated and orders passed under the PEEDA.

12. Since much reliance has been placed by the learned counsel for the Petitioner upon the cases of “Haji Aftab Ahmad”, “Awais Sarwar” and “Mst. Tasleem Kausar”, *supra*, therefore, it is imperative to discuss the said judgments/orders. A detailed analysis of the cited precedents leads to the conclusion that the same are clearly distinguishable from the facts of the case in hand. The order dated 26.11.2025, passed in the case of Haji Aftab Ahmad is a consent order, as evident from paragraphs 3 & 4 of the said order, whereas, in the case of Awais Sarwar, the learned Single Judge in Chambers proceeded to set-aside the major penalty of dismissal from service while observing that: *‘I have also gone through the impugned order, however, while imposing major penalty of “dismissal from service”, neither any evidence has been referred which in the opinion of the competent authority was allegedly escaped from the notice of the Inquiry Officer nor any independent reasons are forthcoming which can justify enhancement the penalty imposed by the Inquiry Officer.’* It was in these circumstances that the order of imposition of dismissal from service was set-aside in the case of Awais Sarwar *supra*. Contrarily, in the case in hand, the Petitioner has not only been found guilty of misconduct but the said conclusion is also based on lawful and cogent findings handed down by the Competent Authority. Likewise, the facts of Tasleem Kausar *supra* are also distinguishable from the facts of the case in hand as the Petitioner has been found guilty of misconduct on the basis of inquiry proceedings conducted against him. For reaching to the conclusion that the charge

of misconduct has been proved against the Petitioner during the course of departmental proceedings, I am guided by the principles of law settled by the Supreme Court of Pakistan viz the departmental proceedings to the effect that the standard of proof in the departmental proceedings is based on the balance of probabilities or preponderance of evidence and not a strict proof beyond any reasonable doubt.² It is also well settled that the standard of evidence in the departmental proceedings is certainly not the same as required to be proved before a regular Court and the departmental authorities are not supposed to follow the technicalities of law to prove a charge of misconduct.³

13. As regards the judgment of the Supreme Court of Pakistan in the case of **Muhammad Arshad**, *supra*, it may be noted that the petitioner before the Supreme Court i.e. *Muhammad Arshad* was proceeded against under the provisions contained in the PEEDA on the basis of various allegations of misconduct, including the charge of withdrawal of an amount of Rs. 252,720/- from the public funds; he was initially found guilty in the departmental inquiry proceedings and was dismissed from service, however, on an appeal filed under Section 16 of the PEEDA, the major penalty of dismissal from service was set-aside and the matter was remanded to the competent authority; on remand, the *de novo* inquiry was conducted and inquiry officer concluded that none of the allegations had been proved against the accused *Muhammad Arshad*, however, slackness was attributed against him, therefore, despite holding that charge of misconduct was not established, the inquiry officer proceeded to recommend minor penalty; the matter was placed before the competent authority under Section 13(1) of the PEEDA and since it was a case falling under Section 13(3) of the PEEDA, therefore, the competent authority either had to exonerate the accused *Muhammad Arshad* or it had to follow the procedure as set down under sub-section (6) of Section 13 since the charge of

² “*Amir Waseem v. Provincial Police Officer/Inspector General of Police Khyber Pakhtunkhwa and others*” (2026 SCP 131); “*Faisal Ali v. District Police Officer, Gujrat and another*” (2025 SCMR 92)

³ “*Managing Director NBF, Islamabad v. Muhammad Arif Raja*” (PLD 2006 SC 175); “*Usman Ghani v. the Chief Post Master, GPO, Karachi*” (2022 SCMR 745)

misconduct was not proved, as concluded by inquiry officer. However, while ignoring the mandatory provisions of Section 13 of the PEEDA, the competent authority in *Muhammad Arshad's* case proceeded to impose major penalty, without establishing the misconduct. It was on the basis of these facts that the Supreme Court of Pakistan proceeded to scrutinize the process of departmental proceedings and while elucidating the mandatory requirements enumerated in Section 13, the Supreme Court of Pakistan has held in the case of *Muhammad Arshad supra* that in such circumstances the issuance of show cause notice under sub-section (4) and proceedings under sub-section (5) of Section 13 of the PEEDA was unlawful as the mandate of sub-sections (3) & (6) was ignored, therefore, the proceedings conducted thereafter in terms of Section 13(5) of the PEEDA were held not sustainable, being an outcome of excessive authority/dominance in the disciplinary proceedings. The Supreme Court further held that overreach in the case of departmental/disciplinary proceedings under the PEEDA, undermines the very essence of fair treatment and compromises the accused/employee's rights due to disregard of due process and procedural impropriety in such cases. In a nub, it is held by the Supreme Court of Pakistan that as per the provisions of the PEEDA, every step required to be undertaken in a disciplinary proceeding must align with having foundational principles of natural justice and procedural fairness and any deviation from these principles risk undermining the validity of the final order.

14. Seeking guidance from the judgment of the Supreme Court in the case of *Muhammad Arshad supra*, as well as other judgments of the Supreme Court on the same subject, I have considered the process being followed in the case in hand, starting from initiation of inquiry under Section 5, conduct of the inquiry proceedings under Sections 9 & 10 of the PEEDA and thereafter adherence to mandate of law by the competent authority under Section 13 i.e. issuance of show cause notice under Section 13(4) of the PEEDA, subsequent proceedings undertaken by the Competent Authority in terms of Section 13(5) of PEEDA, and

I am satisfied that the requirements of due process, procedural propriety, fairness and adherence to the provisions contained in the PEEDA, as determined by the Supreme Court of Pakistan in “Muhammad Arshad's” case, have been aptly followed. Thus, the Dismissal Order of the Petitioner passed by the Competent Authority and dismissal of the departmental appeal by virtue of the Impugned Order are in accordance with law.

15. For the purpose of completeness, I am also guided by a recent Judgment of the Supreme Court of Pakistan, handed down by Hon’ble five Members Bench in the case of “Shafique Ahmed and three others v. Provincial Police Officer, KP & others” (2026 SCP 34), whereby, while authoritatively determining the contours of law viz the question of setting aside or maintaining the dismissal of an employee/civil servant, it is held⁴:

“.....To fully grasp the legal implications, it is crucial to recognize that the decision to annul a dismissal typically arises in one of four specific circumstances. Firstly, this may occur when it is determined that the punishment was enacted due to a procedural irregularity—meaning that the correct protocols were not followed during the disciplinary process—leading to a de novo inquiry.⁵ Secondly, a punishment order may be rescinded based on a technicality or on taking a lenient view of the matter.⁶ Thirdly, dismissal may be overturned if this punishment is deemed disproportionate to the substantiated misconduct, suggesting that the severity of the action taken against the civil servant does not correspond to the seriousness of his behaviour, and, consequently, the punishment is altered and replaced with another.⁷ Lastly, a dismissal

⁴ [The footnotes in the quoted text are varied per the sequence of the judgment in hand]

⁵ (Muhammad Arif Khan Ex. Overseer Grade II v. Dy.Enc.E-IN-C'S Branch, G.H.Q Rawalpindi and another (1991 SCMR 1904); Engineer Majeed Ahmed Memon v. Liaquat University of Medical and Health Science Jamshoro and others (2014 SCMR 1263); Commandant Elite Force, Khyber Pakhtunkhwa and others v. Jamshed Ali (PLD 2019 SC 570); and Muhammad Sadiq v. Inspector General of Police, Punjab, Lahore and others (2017 SCMR 1880); Raja Muhammad Shahid v. The Inspector General of Police (2023 SCMR 1135).

⁶ (Abdul Majeed v. Chairman WAPDA and 2 others (1990 SCMR 1458); Muhammad Tufail v. Divisional Forest Officer, Forest Division, Lahore and 3 others (1990 SCMR 1708), Muhammad Yousaf v. Pakistan Ordnance Factories and another (1990 SCMR 5); Syed Kamaluddin Ahmad v. Federal Service Tribunal and others (1992 SCMR 1348)

⁷ (Sikandar Ali Shah v. Chief Secretary, Government of Sindh, Karachi and another (1995 PLC (CS) 915), Saadat Pervaz Sayan v. Chief Secretary, Government of Punjab, Lahore and 3 others (2003 PLC (CS) 1277); Deputy Postmaster General, Northern Sindh Circle, Hyderabad and others v. Nafees Ahmed (2004 SCMR 950)

*is set aside when the alleged misconduct is not proven, indicating that the civil servant did not engage in behaviour warranting such punitive measures.*⁸

Applying the above tests, the case of the Petitioner does not fall within any of the exceptions enumerated in the case of Shafique Ahmed *supra* for setting aside or altering the punishment awarded to the Petitioner.

16. Finally, as held by the Supreme Court of Pakistan in the case of Muhammad Shakeel and others,⁹ a judgment cannot be generalized beyond its context, as it is only applicable to the situation at hand and does not serve as a precedent for matters that lie outside its explicit scope – a judgment is precedent for its own facts. First, it is essential to recognize that every judgment should be carefully examined in the context of the specific facts that were either proved or assumed to be proved in that case. This is essential because the broader principles and interpretations found within judicial rulings are not intended to serve as comprehensive expositions of the law in its entirety; rather, they are intricately shaped and constrained by the unique circumstances of each particular case. Second, it is imperative to understand that a legal case holds authority solely concerning the specific issues it addresses and the conclusions it reaches. This principle underscores the limited applicability of judgments and reinforces the need for careful analysis when considering their implications in future cases. Considering the above and in view of the settled law on the subject that a case is only authority for what it actually decides and cannot be cited as precedent for a proposition that may be inferred from it¹⁰, the case law relied upon by the learned counsel for the petitioner is distinguishable in facts and

⁸ (Muhammad Sharif and others v. Inspector General of Police, Punjab, Lahore and others (2021 SCMR 962).

⁹ Muhammad Shakeel and others v. Additional District Judge, Faisalabad and others (PLD 2025 SC 572=2025 SCP 35)

¹⁰ Syed Hammad Nabi and others vs Inspector General of Police Punjab, Lahore and others (2023 SCMR 584), Naubahar Bottling Company (Pvt.) Limited and others v. Federation of Pakistan through Revenue Division Ministry of Finance and others (2022 SCMR 765), Quinn v Leathem (1901 AC 495); Trustees of the Port of Karachi v. Muhammad Saleem (1994 SCMR 2213); Sindh High Court Bar Association through its Secretary and another v. Federation of Pakistan through Secretary, Ministry of Law and Justice, Islamabad and others (PLD 2009 SC 879) per Ch. Ijaz Ahmed J., Mst. Muhammadi and others v. Ghulam Nabi (2007 SCMR 761),

circumstances of the case in hand and would, therefore, have no perceptible relevance to the instant case.

17. Once the misconduct was proved in the lawfully conducted inquiry proceedings, it was not binding upon the Competent Authority to necessarily follow the recommendations of the inquiry officer, hence, it was well within the jurisdiction of the Competent Authority to enhance or reduce the quantum of penalty in accordance with law as it is trite that award of punishment is the prerogative of the competent authority and no exception can be taken with the exercise of such discretion, if the requirement of due process, as envisaged under the provisions contained in PEEDA, have been complied with. It is equally well settled that determination of quantum of punishment is the prerogative of the Competent Authority and the only prerequisite is that the misconduct has to be established and the employee should be found guilty after granting him opportunity to defend himself in accordance with law and applicable rules, therefore, the Supreme Court of Pakistan has consistently held that as soon as the act of misconduct is established and the employee is found guilty after due process of law, [as is the case in hand in view of the facts adumbrated above] the prerogative of the employer to decide the quantum of punishment out of various penalties provided in law, cannot be questioned in every other case. The Supreme Court further observed that the casual or unpremeditated observation that the penalty is not proportionate with the seriousness of the act / misconduct, is not adequate but the order must show that the Court or Tribunal has applied its mind and exercised its jurisdiction in a structured and lawful manner before interfering on touchstone of proportionality of the penalty. Thus, it is well established that the Court or Tribunal, in exceptional or appropriate cases or circumstances, may examine the quantum of punishment to figure out the proportionality and reasonableness¹¹ and may also nullify or overturn such punishment, if found out of proportion with the act of misconduct. In

¹¹ “*Sabir Iqbal (Sabir Iqbal v. Cantonment Board, Peshawar through Executive Officer and others*” (PLD 2019 SC 189); “*Muhammad Nasir Ismail v. Government of the Punjab through Secretary Law and Parliamentary Affairs Division, Lahore*” (2025 SCMR 708)

addition to the foregoing, the other principles settled by the Supreme Court of Pakistan must also weigh heavy on the mind of the Court or Tribunal before interfering *qua* the quantum of punishment, whereby, it is settled that while considering the aspects of proportionality or reasonableness, the interference in all the cases of misconduct / award of major penalty is not the mandate of law. In the case of **Ali Ahmad Khan**¹², the Supreme Court of Pakistan has held that the award of appropriate punishment under the law is primarily the function of the concerned administrative authority and the role of the Court/Tribunal is secondary. In tandem, the law also authorizes the Court/Tribunal to decide the proportionality *vis a vis* the quantum of punishment awarded by the competent authority, however, before interfering, the Court/Tribunal must follow the limitations and retractions of the law in a manner which may not offend the spirit of law and while taking into consideration the philosophy of punishment and concept of retribution, the Court should also keep in mind that the purpose of deterrent punishment is not only balance the gravity of the wrong done, but also to maintain the discipline and decorum in the establishment institution, and at times, to serve as a preventive measure or example for others.¹³ Reliance may be placed upon recent pronouncements of the Supreme Court of Pakistan in the cases of: **“Saeed Ahmed v. Nestle Pakistan Ltd” (2026 SCMR 105)**, **“Chairman Pakistan Ordinance Factory v. Akhtar Tanveer” (2025 SCMR 374)** and **“Sakhil Zar v. Karachi Electric Company Ltd” (2024 SCMR 1722)**.

18. In addition to and without prejudice to the foregoing, the conduct of the Petitioner also disentitles him from the exercise of extraordinary equitable jurisdiction of this Court under Article 199 of the Constitution. The Petitioner joined the inquiry proceedings without any objection and once he was found guilty of misconduct and was awarded major penalty of dismissal from service *vide* Dismissal Order passed by the Director General, PLRA in November 2024, he himself filed a

¹² **“Secretary to the Government of the Punjab Law and Parliamentary Affairs Department v. Ali Ahmad Khan” (2025 SCMR 708)**

¹³ See paragraph 7 of the law report [2025 SCMR 708]

departmental appeal before the SMBR, while invoking Section 16 of the PEEDA; which appeal was decided by the SMBR *vide* Impugned Order on 03rd of June, 2025; the Petitioner still kept a mum and after lapse of more than 07 (seven) months, he took a somersault and filed yet another appeal under Section 16 of the PEEDA before the Chief Secretary, Government of Punjab, which appeal was declined/returned vide letter dated 30.01.2026, stating that the departmental appeal filed under Section 16 of the PEEDA has already been decided by the SMBR. The Petitioner again remained silent for almost 45 days before filing the Constitutional Petition in hand and as such, apart from the fact that the Petitioner has no case on merits, the conduct of the Petitioner also disentitles him from grant of equitable relief.

19. For the foregoing, the Constitutional Petition in hand has no merits and the same is accordingly **dismissed**.

(KHALID ISHAQ)
JUDGE.

ANNOUNCED IN THE OPEN COURT ON 25.05.2026.

(KHALID ISHAQ)
JUDGE.

Approved for Reporting

(KHALID ISHAQ)
JUDGE.

Announced on 25.05.2026.
Signed on 02.06.2026

**Ajmal Rana.*